

25NWCV02257 25NWCV02257

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Case Number: 25NWCV02257 Hearing Date: August 7, 2026 Dept: C

RODRIGUEZ vs GENERAL MOTORS, LLC.

CASE NO.: 25NWCV02257

HEARING: 8/7/26 @ 9:30 AM

#13

TENTATIVE ORDER

I.

Defendant General

Motors LLC's Motion for Terminating Sanctions is GRANTED. Plaintiff Gabriel Rodriguez's action shall be dismissed with prejudice. No monetary sanctions.

II.

Attorney Mani Arabi's

Motion to be Relieved as Counsel for Plaintiff is DENIED as MOOT.

Defendant to give NOTICE.

Background

This

is a lemon law case. Plaintiff alleges that on August 24, 2019, Plaintiff entered into a warranty contract with Defendant GM regarding a 2019 Chevrolet Silverado 1500, vehicle identification number 3GCPWEED3KG202299 (hereafter "Vehicle" or "Subject Vehicle"), which was manufactured and or

distributed by Defendant GM. (First Amended Complaint (FAC), ¶ 6.) The warranty contract contained various warranties, including but not limited to the bumper-to-bumper warranty, powertrain warranty, emission warranty, etc. (FAC, ¶ 7.) Defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to transmission defects, engine defects, electrical defects; among other defects and non-conformities. (FAC, ¶ 11.)

On March 24, 2026, this Court granted Defendant's Motion to Compel Plaintiff's Deposition and ordered Plaintiff to sit for deposition within 15 days. Plaintiff and Plaintiff's Counsel failed to appear for deposition.

Motion
for Terminating Sanctions

Defendant

General Motors LLC (Defendant) moves for termination sanctions and an order dismissing the action brought by Plaintiff for the unreasonable, unjustified, and repeated refusal to obey discovery statutes and the Court's Order that they appear for deposition.

If

a party fails to comply with a court order compelling discovery responses or attendance at a deposition, the court may impose monetary, issue, evidence, or terminating sanctions. (CCP § 2025.450(h); § 2030.290(c); § 2031.300(c).) "To the extent authorized by the chapter governing any particular discovery method ... the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose ... [monetary, issue, evidence, or terminating] sanctions against anyone engaging in conduct that is a misuse of the discovery process" (CCP § 2030.030.)

"The

trial court may order a terminating sanction for discovery abuse 'after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.' " (Los Defensores, Inc. v. Gomez (2014) 223 Cal.App.4th 377, 390, quoting Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) "Generally, '[a] decision to order terminating sanctions should not

be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.”(Los Defensores, supra, 223 Cal.App.4th at 390.)

Defendant

contends that Plaintiff was first served with a deposition notice on September 19, 2025 for January 12, 2026. Plaintiff evaded her discovery obligations and refused to appear for her properly noticed deposition. Plaintiff’s counsel ignored Defendant’s numerous requests to schedule deposition between September 2025 and March 2026. Defendant was forced to bring its motion to compel Plaintiff’s deposition. On March 24, 2026, this Court granted the motion and ordered Plaintiff to sit for deposition within 15 days.

In

opposition, Plaintiff’s counsel argues that because of the complete breakdown in communication, counsel is unable to perform the functions necessary to represent Plaintiff in this action. Among other things, counsel cannot obtain Plaintiff’s cooperation, cannot prepare Plaintiff for deposition, and cannot produce Plaintiff for deposition, because Plaintiff cannot be reached despite counsel’s efforts. Plaintiff’s counsel further contends that they have not disregarded this Court’s orders. On April 10, 2026, Plaintiff’s counsel paid the \$1,500 monetary sanction the Court ordered on March 24, 2026, and filed a notice of that payment. The remaining obstacle to compliance — producing Plaintiff for deposition — is the direct result of Plaintiff’s unresponsiveness, which is outside counsel’s control.

The

Court finds that good cause exists to impose terminating sanctions against Plaintiff given his abandonment of the action. Plaintiff failed to abide by this Court’s March 24, 2026 Order by failing to appear for the court-ordered deposition. (Lasater Decl. ¶¶ 4-6.) Additionally, Plaintiff has failed to communicate with his own counsel.

As

to monetary sanctions, the Court denies Defendant’s \$1,500 sanction request. Section 2023.030(a) permits a court to impose a monetary sanction for misuse of the discovery process. California discovery law authorizes a range of penalties for

conduct amounting to “misuse of the discovery process.” (Code Civ. Proc. § 2023.030; Cedars–Sinai Medical Cen. v. Superior Ct. (1998) 18 Cal.4th 1, 12.) Here, Plaintiff is already penalized by being prohibited from pursuing his claims given the action is dismissed with prejudice. Additionally, Plaintiff’s counsel has already paid the \$1,500 monetary sanction the Court ordered on March 24, 2026, and filed a notice of that payment. Plaintiff’s counsel’s inability to contact Plaintiff after that date is the result of Plaintiff’s unresponsiveness despite counsel’s declared good faith efforts. (Smith Decl. ¶¶ 4-8.)

Accordingly,

Defendant’s motion is GRANTED. Plaintiff’s action shall be dismissed with prejudice. No monetary sanctions imposed.

Motion to be Relieved as Counsel

Attorney Mani Arabi of Strategic Legal

Practices, APC moves to be relieved as counsel for Plaintiff.

Good cause exists to grant the motion

based on any of the grounds under Rules of Professional Conduct Rule 3-700(C).

Rule 3-700(c) provides that an attorney may withdraw based on any of the following: (1) The client (a) insists upon presenting a claim or defense that is not warranted under existing law and cannot be supported by good faith argument for an extension, modification, or reversal of existing law, or (b) seeks to pursue an illegal course of conduct, or (c) insists that the member pursue a course of conduct that is illegal or that is prohibited under these rules or the State Bar Act, or (d) by other conduct renders it unreasonably difficult for the member to carry out the employment effectively, or (e) insists, in a matter not pending before a tribunal, that the member engage in conduct that is contrary to the judgment and advice of the member but not prohibited under these rules or the State Bar Act, or (f) breaches an agreement or obligation to the member as to expenses or fees. (2) The continued employment is likely to result in a violation of these rules or of the State Bar Act; or (3) the inability to work with co-counsel indicates that the best interests of the client likely will be served by withdrawal; or (4) The member’s mental or physical condition renders it difficult for the member to carry out the employment effectively; or (5) The client knowingly and freely assents to termination of the employment; or (6) The member believes in good faith, in a proceeding pending before a tribunal, that the tribunal will find the existence of other good cause for withdrawal.

The Motion demonstrates good
cause for withdrawal based on Arabi's

declaration that there was a breakdown in the
attorney-client relationship due to Plaintiff's unresponsiveness and
refusal to cooperate with counsel. Since October 16, 2025, counsel's firm
has made numerous attempts to communicate with Plaintiff by telephone and
emails about key updates regarding his case, but without success. On June 30,
2026 counsel sent Plaintiff a comprehensive letter regarding his case and
demanded an immediate response. Plaintiff failed to respond. (Arabi Decl.,
MC-052, 2.) Plaintiff was served by mail at the client's last known address
with the Motion and declaration.

However, because the Court granted
Defendant's motion for terminating sanctions, and the Court dismissed the case,
the motion to be relieved as counsel is DENIED as MOOT.